THE BILL IS RIGHT IN PRINCIPLE AND SLOPPY IN EXECUTION

The Arden Capital Daily

Editorial — 24 August 2025

We have supported the principle of this bill from the first hearing. Those who profited from selling the fuel should help pay to repair the coast. That is not a radical proposition and the storms of the last five years have made it an urgent one.

What we cannot support is the drafting. Over the course of the session the Legislature changed the coverage test from a dollar figure to a percentage, changed the fund target without asking for a new fiscal note, added a second and different basis for computing the charge without repealing the first, and struck the severability clause without giving a reason. Any one of these is a gift to the lawyers. Together they are an invitation.

The Legislature was warned about each of them, on the record, by its own counsel. It proceeded anyway. Members told us that the session was ending and the bill had to move.

The Governor now has to decide whether a bill that is right in principle should be signed in a form that may not survive. We think he should send it back with the four amendments the record already identifies. A bill worth passing is worth drafting properly.

This is the opinion of the editorial board.